

Opinion of the Court

fense Council, Inc., 555 U. S. 7, 24, 26 (2008). Indeed, “courts traditionally have been reluctant to intrude upon the authority of the Executive in military and national security affairs” unless “Congress specifically has provided otherwise.” *Department of Navy v. Egan*, 484 U. S. 518, 530 (1988). Congress has not provided otherwise here.

There are limitations, of course, on the power of the Executive under Article II of the Constitution and in the powers authorized by congressional enactments, even with respect to matters of national security. See, e. g., *Hamdi v. Rumsfeld*, 542 U. S. 507, 527, 532–537 (2004) (plurality opinion) (“Whatever power the United States Constitution envisions for the Executive . . . in times of conflict, it most assuredly envisions a role for all three branches when individual liberties are at stake”); *Boumediene v. Bush*, 553 U. S. 723, 798 (2008) (“Liberty and security can be reconciled; and in our system they are reconciled within the framework of the law”). And national-security concerns must not become a talisman used to ward off inconvenient claims—a “label” used to “cover a multitude of sins.” *Mitchell v. Forsyth*, 472 U. S. 511, 523 (1985). This “‘danger of abuse’” is even more heightened given “‘the difficulty of defining’” the “‘security interest’” in domestic cases. *Ibid.* (quoting *United States v. United States Dist. Court for Eastern Dist. of Mich.*, 407 U. S. 297, 313–314 (1972)).

Even so, the question is only whether “congressionally uninvited intrusion” is “inappropriate” action for the Judiciary to take. *Stanley*, 483 U. S., at 683. The factors discussed above all suggest that Congress’ failure to provide a damages remedy might be more than mere oversight, and that congressional silence might be more than “inadvertent.” *Schweiker*, 487 U. S., at 423. This possibility counsels hesitation “in the absence of affirmative action by Congress.” *Bivens*, 403 U. S., at 396.

Furthermore, in any inquiry respecting the likely or probable intent of Congress, the silence of Congress is relevant;